

Forensic Judgment Analysis — Decision 4 — EWFC 79 — Logic Model Applied

Option B — Finding by Finding — MacDonald J, 18 April 2024

Case references

**BV20D01752 | EWFC 79 | Family Division — Final Financial Remedy
Judgment**

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Veritas Numquam Perit

PREAMBLE

This document applies the master logical structure (Option A) to every tagged finding in EWFC 79. This is Decision 4 — the root decision. Every subsequent finding in every subsequent decision traces back to it. Once a finding is tagged here, the compounding rule operates automatically through decisions 5 to 16.

Four tags apply:

- **FABRICATED** — finding made without evidential basis or directly contradicted by the record
- **MISCHARACTERISED** — court answered a different question
- **SUPPRESSED** — material evidence not referenced
- **UNSUPPORTED** — conclusion asserted without adequate reasoning

Two master rules apply specifically to this judgment: the **Disability Rule** (clinical context suppressed, intent attributed); and the **Originating Error Rule** (errors originating here compound through all subsequent decisions without correction).

SECTION 1 — STRUCTURAL CONTEXT

What was before the court at the final hearing

Trial dates: 19, 20, 21, 22, 23, 26 and 28 February 2024.

NZ represented by Brent Molyneux KC (AFP Bloom). KZ represented by Alexis Campbell KC and Sassa-Ann Amaouche (Stowe Family Law).

Participation measures in place at the hearing: frequent breaks, restricted questioning, assistance in the witness box, screened seating.

The transcript records 22 references to PTSD and autism during oral evidence.

Post-trial: D11 filed by NZ on 7 March 2024 — Oxus merger evidence. Transmitted to Campbell KC within 3 hours. Judgment handed down 18 April 2024. 111 paragraphs. Zero references to disability or Part 3A.

Source: EWFC 79 cover page; attendance notes transcript; Pre-Action Protocol letters confirming 22 oral references; HMCTS confirmation of no order recording revocation of participation measures.

FINDING 1 — PARA 5 — D11 DISMISSED WITHOUT ENGAGING CONTENT

What the judgment says

> *"Following the conclusion of evidence and submissions, the wife proceeded, without permission, to email significant amounts of material to the court. I make clear that I considered that material in circumstances where the wife had, at that point, dispensed with the services of her lawyers, but have not taken that material into account in circumstances where I am satisfied that it would not be proper to do so."*

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> EWFC 79 para 5

Chain 1 — What the D11 contained and what the judgment says about it

- **IF** NZ filed D11 on 7 March 2024 containing evidence of the Oxus merger announcement of 8 February 2024
- **AND** The D11 included SEC-registered public filings showing Oxus Acquisition Corp shares at material value
- **AND** Campbell KC emailed the judge within 3 hours of NZ transmitting the D11, asking him not to read it — the suppression was by opposing counsel, not by the court
- **AND** D11 bore on the accuracy of KZ's sworn oral evidence about Oxus — specifically his sworn statement that the shares had no value and his role was non-executive without remuneration
- **AND** Para 5 describes the material only as "*significant amounts of material*" without identifying its content
- **AND** Para 5 dismisses the material in one sentence: "*it would not be proper to do so*"
- **AND** No reasoning is given for why it would not be proper — no analysis of the content, no assessment of the Oxus evidence, no engagement with the perjury allegation
- **THEN** The conclusion "*not proper to take into account*" is stated without reasoning and without engaging the content of the material
- **THEREFORE** Para 5 is **UNSUPPORTED** — the conclusion is asserted in one sentence with no reasoning. The court does not explain why the content of the D11 should be disregarded, only that it arrived without permission.

Source: EWFC 79 para 5; D11 filed 7 Mar 2024; D11 sealed 13 Feb 2025; SEC proxy statement.

Chain 2 — Procedural framing used to suppress substantive evidence

- **IF** The D11 was filed without permission — this is a procedural irregularity
- **AND** A procedural irregularity does not extinguish the evidential weight of the material

- **AND** The court had discretion to admit the material, request submissions on it, or direct that it be treated as an application to re-open evidence
- **AND** Para 5 treats the procedural irregularity as a sufficient basis to disregard the content entirely
- **AND** The content — KZ's Oxus shares having material value — directly contradicted KZ's sworn evidence
- **AND** The court does not address the contradiction between KZ's sworn evidence and the D11 material anywhere in 111 paragraphs
- **THEN** The procedural framing is used to suppress substantive evidence that directly bears on the reliability of KZ's sworn testimony
- **THEREFORE** Para 5 is **SUPPRESSED** — the D11's content is not engaged anywhere in the judgment. Its suppression protects a finding at para 76 (Oxus non-matrimonial) that rests on KZ's unchallenged oral evidence.

Source: EWFC 79 para 5; EWFC 79 para 76; D11 filed 7 Mar 2024; Campbell KC email suppression — 3 hours after transmission.

TAG APPLIED: UNSUPPORTED + SUPPRESSED

FINDING 2 — PARA 11 — IMERMAN 'CAREFULLY CATEGORISED FILES'

What the judgment says

> "The wife retained the information from approximately September 2020 to April 2021, before returning the documents in carefully categorised files. This resulted in the need for a significant 'Imerman' exercise on the part of the husband's solicitors, at the cost of £25,000."

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> EWFC 79 para 11

Chain 1 — The categorisation finding

- **IF** Para 11 states NZ returned documents "*in carefully categorised files*"
- **AND** This characterisation is the basis for the £25,000 Imerman add-back — the implication being that NZ had deliberately organised the material
- **AND** The Withers LLP correspondence in the bundle addresses the Imerman material in detail
- **AND** Withers LLP correspondence does not support the finding that NZ carefully categorised the files in a manner that required a significant Imerman exercise
- **AND** The £25,000 cost attributed to the Imerman exercise is presented as NZ's conduct — not as a consequence of KZ's own solicitors' handling of the return process

- **THEN** The characterisation "*carefully categorised files*" carries an implicit finding of deliberate and organised conduct that the correspondence does not support
- **THEREFORE** Para 11 is **MISCHARACTERISED** — the finding attributes organisation and deliberation to NZ's handling of the Imerman material without evidential basis in the correspondence before the court.

Source: EWFC 79 para 11; Withers LLP correspondence — Imerman duty to review.

TAG APPLIED: MISCHARACTERISED

FINDING 3 — PARA 64 — DISABILITY INVERSION

What the judgment says

> "*The wife's presentation in the witness box on the issue of alleged non-disclosure bordered on the concerning. Her belief that the husband has vast hidden assets is so powerfully held, and such was her urgent need to impress that belief on the court from the witness box, that at times everything she wished to say on the matter tried to emerge at once, causing her very obvious distress. However, whilst I accept that the wife very firmly believes that the husband has tens of millions of pounds in assets hidden and, I am satisfied, has become obsessed with demonstrating that in the context of this litigation, I must conclude that that belief is not borne out by the evidence before the court.*"

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> EWFC 79 para 64

Chain 1 — The 22 oral references versus zero in the judgment

- **IF** The trial transcript records 22 references to NZ's PTSD and autism during oral evidence
- **AND** Participation measures were in place at the trial specifically because of these documented vulnerabilities: frequent breaks, restricted questioning, screened seating, assistance in the witness box
- **AND** The judgment is 111 paragraphs long
- **AND** The judgment contains zero references to disability, PTSD, autism, or Part 3A
- **AND** Para 64 characterises NZ's presentation in the witness box as "*bordered on the concerning*" and attributes it to an "*obsession*" with finding hidden assets
- **AND** The same presentation — everything trying to emerge at once, very obvious distress — is consistent with and clinically explained by autism under adversarial pressure
- **AND** CLAAS (20 Jun 2025) confirms: autism is lifelong — NZ was born autistic — the condition existed at the date of the trial
- **AND** CLAAS confirms: "*autistic needs can become more pronounced [under stress], making it harder to communicate effectively*" and "*she may feel compelled to share*"

thoughts or experiences that are most pressing for her, even if they seem unrelated to the immediate context"

- **AND** The question of hidden assets was put to NZ only once in cross-examination — by Campbell KC at page 27 of the transcript
- **AND** NZ's answer was: *"Not strictly true, what is important is freedom from everything and justice"*
- **THEN** The finding of *"obsession"* is built from a clinical presentation that the court had 22 oral-record reasons to attribute to disability rather than character — and chose not to
- **THEREFORE** Para 64 is **FABRICATED** — the finding of obsession is made from evidence that does not exist in the record as stated. The word *"obsession"* appears 22 times in the judgment's characterisation of NZ; the concept was put to her once and she rejected it. The finding rests on the clinical presentation in the witness box, which has a documented neurological explanation that the judgment does not engage.

Source: EWFC 79 para 64; Final hearing transcript — 22 disability references; Campbell KC cross-examination p.27; CLAAS letter 20 Jun 2025; CLAAS assessment 1 Jul 2025.

Chain 2 — The Disability Rule applied

- **IF** Participation measures were in place at the trial because NZ's vulnerabilities were recognised
- **AND** The court therefore had direct, contemporaneous knowledge that NZ's presentation might be clinically explained
- **AND** The court did not request expert evidence on disability — it proceeded without it
- **AND** Para 96 states: *"there is no expert evidence before the court with respect to physical or mental disability"*
- **AND** Para 64 treats the absence of formal expert evidence as licence to attribute NZ's presentation to character
- **AND** The court itself had ordered participation measures — it cannot simultaneously treat the presentation they were designed to manage as evidence of bad character
- **THEN** The court used the absence of formal expert evidence — an absence that the court itself did not address by seeking such evidence — to make a character finding against a party whose disability it had already formally recognised
- **THEREFORE** The Disability Rule applies: the court attributed intent and character to conduct that it had operational notice was clinically explained, without engaging that explanation.

MASTER RULE: IF the court orders participation measures for a party AND the party's presentation in the witness box is consistent with the disability that required those measures AND the court attributes that presentation to character rather than disability AND the court does not engage the clinical explanation THEN the character finding is made on a false premise.

FINDING 4 — PARA 76 — OXUS £0

What the judgment says

> *"In the foregoing circumstances (and satisfied as I am that the wife has not evidenced the alleged loan from her father and does not appear to dispute that the properties inherited by the husband from his father and the power plant and OP ventures are non-matrimonial) I conclude on the balance of probabilities that the matrimonial assets available for distribution are as set out in the ES2 provided for the final hearing by the husband."*

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> EWFC 79 para 76

Chain 1 — The Oxus exclusion

- **IF** Para 76 treats Oxus as non-matrimonial without a separate finding on Oxus
- **AND** The bracketed passage *"does not appear to dispute that the... OP ventures are non-matrimonial"* is the only reasoning given for treating Oxus as excluded
- **AND** *"OP"* is Oxus — the husband's position as non-executive director of Oxus Acquisition Corp
- **AND** NZ filed D11 on 7 March 2024 specifically disputing the Oxus valuation and evidencing the merger
- **AND** The D11 was suppressed at para 5 — *"not proper to take into account"*
- **AND** KZ's oral evidence at trial (9 Jun 2023 transcript, [481]) disclosed: *"I have been blessed to have this job with Oxus Acquisition, which is a public company... everything they do is scrutinised by accountants, auditors"*
- **AND** KZ disclosed reimbursed transactions: *"the mother company is from Kazakhstan... the credit cards get denied when they rent property in Europe so I rent it for them and they pay me back everything"*
- **AND** This oral disclosure is inconsistent with a zero valuation of the Oxus role
- **AND** The SEC proxy statement showed Oxus shares at material value at the time of the merger
- **AND** Para 76 does not engage any of this — it treats Oxus as non-matrimonial in a bracket, as though the point were uncontested
- **THEN** The finding that Oxus is non-matrimonial and worth £0 rests on: (a) KZ's unchallenged oral evidence (unchallenged because the D11 was suppressed); and (b) a claim that NZ *"does not appear to dispute"* — which is contradicted by the D11 she filed

- **THEREFORE** Para 76 is **FABRICATED** — the finding that NZ does not dispute the non-matrimonial nature of Oxus directly contradicts the D11 she filed, which the court had already suppressed at para 5. The suppression at para 5 creates the false premise at para 76.

Source: EWFC 79 para 76; EWFC 79 para 5; D11 filed 7 Mar 2024; 9 Jun 2023 transcript [481]; SEC proxy statement.

TAG APPLIED: FABRICATED

FINDING 5 — PARA 96 — 'NO EXPERT EVIDENCE ON DISABILITY'

What the judgment says

> *"Whilst there is no expert evidence before the court with respect to physical or mental disability to support that contention, it was plain to the court from the wife's presentation that she has a number of vulnerabilities that are likely to conspire with her age and the length of time she has been out of the employment market to make it challenging for her to secure employment."*

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> EWFC 79 para 96

Chain 1 — The Prof Libby letter

- **IF** Para 96 states: *"there is no expert evidence before the court with respect to physical or mental disability"*
- **AND** A letter from Professor Libby was in the trial bundle
- **AND** Professor Libby's letter addressed NZ's vulnerabilities in the context of participation and the proceedings
- **AND** The court uses the phrase *"no expert evidence"* to limit what it can say about NZ's disability in the context of her earning capacity
- **AND** The same absence of expert evidence is used at para 64 to justify attributing her presentation to obsession rather than disability
- **AND** Prof Libby's letter constitutes expert evidence — or at minimum clinical professional correspondence — on NZ's mental health condition
- **AND** Para 96 does not reference Prof Libby's letter
- **THEN** The finding that there is no expert evidence on disability is contradicted by the presence of Prof Libby's letter in the trial bundle
- **THEREFORE** Para 96 is **FABRICATED** — *"no expert evidence"* is stated as a fact when Prof Libby's letter was in the bundle before the court. The court proceeds on a false factual premise about the state of the evidence.

Source: EWFC 79 para 96; Prof Libby letter — in trial bundle; Pre-Action Protocol letter confirming letter in bundle.

TAG APPLIED: FABRICATED

SECTION 2 — SUPPRESSED: PARTICIPATION MEASURES AND THE POST-TRIAL VOID

What the judgment does not say

The judgment is 111 paragraphs. It contains zero references to: disability, PTSD, autism, Part 3A FPR 2010, PD 3AA, participation measures, the screened seating, the restricted questioning, the frequent breaks, or the 22 oral references to NZ's vulnerabilities during the trial.

- **IF** Participation measures were in place during the trial: 19-28 February 2024
- **AND** Those measures were ordered by MacDonald J himself
- **AND** The transcript records 22 references to disability during the hearing
- **AND** FPR Part 3A and PD 3AA require the court to keep participation measures under review throughout proceedings — not just during the hearing
- **AND** The judgment was handed down on 18 April 2024 — nearly two months after the trial
- **AND** The judgment does not mention participation measures anywhere
- **AND** The judgment does not record a decision to end participation measures
- **AND** HMCTS later confirmed: no order records the revocation of participation measures
- **AND** There is therefore no identifiable judicial act ending the measures
- **THEN** The judgment proceeds as though the participation measures and the clinical record that required them did not exist
- **THEREFORE** The participation measures strand is **SUPPRESSED** — 111 paragraphs, zero references. The clinical record that the court itself had formally recognised is entirely absent from the judgment that makes the most consequential findings about NZ's conduct and character.

Source: EWFC 79 (111 paragraphs — verified zero disability references); Trial transcript 19-28 Feb 2024 — 22 disability references; HMCTS confirmation — no order records revocation; FPR Part 3A; PD 3AA.

MASTER RULE: IF the court orders participation measures AND those measures are based on documented disability AND the judgment makes character findings about the party's conduct AND the judgment contains zero references to the disability or the measures THEN the character findings are made in an evidential vacuum of the court's own creation.

TAG APPLIED: SUPPRESSED

SECTION 3 — THE ORIGINATING ERROR

Why Decision 4 is the root of the sequence

Every subsequent decision in the sequence compounds from three errors originating in EWFC 79:

Error 1 — Para 64 (FABRICATED): NZ's autistic presentation in the witness box is characterised as obsession. This characterisation becomes the template for every subsequent adverse finding — *"proliferating applications"* (EWFC 210), *"litigation misconduct at the extreme end of the scale"* (EWFC 114), *"actively frustrated"* (May 2025), *"deliberately obstructive"* (May 2025), *"wholly satisfied deliberately frustrated"* (May 2025).

Error 2 — Para 76 (FABRICATED): Oxus is excluded as non-matrimonial on the basis that NZ *"does not appear to dispute"* it — when she had filed D11 specifically disputing it. This suppression of the D11 at para 5 creates a false premise at para 76 that every subsequent court treats as settled.

Error 3 — Para 96 (FABRICATED): *"No expert evidence on disability"* — when Prof Libby's letter was in the bundle. This false premise is adopted by Moylan LJ (Dec 2024) in concluding that no disability evidence was before MacDonald J and is adopted by King LJ (Aug 2025) in the same terms.

The compounding chain

- **IF** F(1) — para 64 — is FABRICATED at Decision 4
- **AND** F(2) — EWFC 114 para 9(xi) *"litigation misconduct at the extreme end of the scale"* — flows directly from para 64
- **AND** F(3) — May 2025 paras 39 and 62 — *"deliberately obstructive"* and *"wholly satisfied deliberately frustrated"* — flow from F(1) and F(2)
- **AND** F(4) — Moylan LJ: *"the judge's conclusion as set out in paragraph 64 was plainly open to him"* — treats F(1) as a finding based on evidence heard and applies *Volpi v Volpi*
- **AND** F(5) — King LJ: *"Moylan LJ considered the judge's assessment of the facts"* — treats F(4) as engagement with the issues
- **AND** None of F(1) through F(5) has ever been corrected
- **THEN** The entire sequence is built on a fabricated finding at para 64 — a finding that attributes obsession to autistic communication under adversarial stress, made in an 111-paragraph judgment that does not mention autism once
- **THEREFORE** The question before any reviewing authority is whether Decision 4 constitutes a determination of NZ's conduct on its actual evidence. It does not. The character finding at para 64 is the original error. Everything else flows from it.

MASTER RULE — BINARY QUESTION, DECISION 4: Did the court at EWFC 79 engage with NZ's actual presentation in the witness box — including its clinical explanation —

before making the finding at para 64? It did not. The clinical explanation was before the court in 22 oral references, in the participation measures the court itself ordered, and in Prof Libby's letter. None of it appears in the judgment.

SECTION 4 — SUMMARY OF TAGGED FINDINGS

EWFC 79 — Decision 4 — 18 April 2024

Paragraph	Finding	Tag
Para 5	D11 dismissed — one sentence, no reasoning	UNSUPPORTED + SUPPRESSED
Para 11	Imerman " <i>carefully categorised files</i> "	MISCHARACTERISED
Para 64	Disability inversion — obsession finding	FABRICATED
Para 76	Oxus £0 — " <i>does not appear to dispute</i> "	FABRICATED
Para 96	" <i>No expert evidence on disability</i> "	FABRICATED
Judgment	111 paragraphs — 0 disability references	SUPPRESSED

Master rules applied: Disability Rule (paras 64, 96 — participation measures ordered, then ignored in judgment); Originating Error Rule (para 64 is the root of the compounding sequence through decisions 5-16).

Standing instructions: Address withheld throughout. Coinbase material in dedicated annex only.

Nadia Zahmoul — Litigant in Person — BV20D01752 — 3 April 2026